

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.

Plaintiff thereafter meets his burden to raise a triable issue of material fact as to whether defendant Defender Tree Service, LLC was defendants' independent contractor or employee such that the *Privette* doctrine does not apply. (Disputed UMF Nos. 5–6, 12; Additional UMF Nos. 3–5, 7–10.) Specifically, plaintiff presents evidence that defendant Defender Tree Service, LLC's contractor's license was suspended before, during, and after the incident giving rise to the litigation. In other words, defendant Defender Tree Service, LLC was required to have a contractor's license for the tree service performed on defendants' property pursuant to Business and Professions Code, section 7026.1, yet its license was suspended and therefore invalid, and the presumption in Labor Code section 2750.5 is that defendant Defender Tree Service, LLC was defendants' employee so the *Privette* doctrine is inapplicable.

Defendants' citation to *Chin v. Namvar* (2008) 166 Cal.App.4th 994 for the proposition that plaintiff is estopped from rebutting the presumption in Labor Code section 2750.5 is unavailing because the case stands for the proposition that defendant Defender Tree Services, LLC—as the one who represented itself as a licensed contractor—is estopped from asserting that its unlicensed status makes it an employee pursuant to Labor Code section 2750.5 not plaintiff who did not represent himself as a licensed contractor.

Accordingly, defendants' motion for summary adjudication is denied as to the negligence and premises liability causes of action and, therefore, their motion for summary judgment is denied.

9. S-CV-0053276 SANCHEZ, JOSE v. D & D CABINETS – SAVAGE

Mediation Status Conference

The mediation status conference is dropped from calendar in light of the parties joint mediation status conference statement filed with the court on June 16, 2026, that includes all the information required by the court.

10. S-CV-0053328 LAFAYETTE FEDERAL CREDIT v. BRATCHER, IRMA

Plaintiff's Motion to Enter Judgment Pursuant to CCP § 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$33,565.96 in

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unpaid principal plus \$3,578.30 in attorney's fees, \$508.55 in court costs, and \$1,594.36 in interest for a total judgment entered of \$39,247.17.

11. S-CV-0055515 HENSCHER, MATTHEW v. HENGL, KEVIN

Defendants Kevin Hengl, Richard Hengl, Superior Preservation & Construction, and Superior Custom Construction, LLC's Motion for Leave of Court to File an Amended Answer and Cross Complaint

Preliminary Matters

Defendants' objections are overruled in their entirety.

Ruling on Motion

Defendants seek leave of court to file a cross-complaint and an amended answer.

A defendant who fails to file a cross-complaint at the time of filing the answer must seek leave from the court to file the cross-complaint. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a).) Leave to file a compulsory cross-complaint is generally granted unless the defendant has not acted in good faith or there is substantial prejudice to the plaintiff if leave is granted. (*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–100; *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902–03.)

The proposed cross-complaint alleges causes of action for (1) Breach of Contract; (2) Unjust Enrichment; (3) Quantum Meruit; (4) Contribution; (5) Equitable Indemnity; and (6) Declaratory Relief—all of which arise from the same transactions as plaintiffs' complaint. The court finds no evidence defendants acted in bad faith. The court further finds there is no risk of substantial prejudice to any party if leave is granted. The court similarly finds defendants did not act in bad faith nor is there substantial risk of prejudice to any party if leave is granted to file the proposed amended answer.

Defendants' motion for leave to file a cross-complaint and first amended answer is granted. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a), 473, subd. (a)(1), 576.) Defendants shall file and serve the cross-complaint and first amended answer attached to the declaration of Trevor White on or before **July 13, 2026**.